

to be correct, that is an argument for later and does not render this discovery response inadequate.

Request for Production of Documents No. 16

Defendant seeks documents relating to Plaintiff's employer's response to reports of unauthorized access of her work devices. Plaintiff referenced a portion of a text between Plaintiff and her employer. Defendant argues that Plaintiff never produced the entire communication, which Defendant had to subpoena from the employer. That full communication, however, contains no further information responsive to this discovery request. Indeed, it appears that the employer did not further respond to these reports. Again, Defendant appears to be arguing that Plaintiff has no evidence to support her claims, but that does not render *this* discovery response inadequate.

Sanctions

Defendant also seeks sanctions in the amount of \$2,910.00. Plaintiff has amended responses and claims that renders the motion moot, and on that basis believes the request for sanctions should be denied. California Rule of Court 3.1348(a) provides: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed." Sanctions here are appropriate. The Court has previously addressed that Plaintiff's behavior increases the burden on the other party *and* the Court and is not proper. The Court awards sanctions in the amount of \$2,910.00 against Plaintiff Maria Seredkina and her counsel, Joseph Goethals of Goethals & Stone, P.C., payable within 60 days of the date of the order.

10. 9:00 AM CASE NUMBER: C24-02709

CASE NAME: MARIA SEREDKINA VS. PAVEL YEFENAU

***HEARING ON MOTION FOR DISCOVERY QUASH DEPOSITION SUBPOENA FOR PRODUCTION OF RECORDS**

FILED BY: MASCHMEIER, VICTORIA

TENTATIVE RULING:

Before the Court is third-party Victoria Maschmeier's Motion to Quash Deposition Subpoena for Production of Records; and Request for Monetary Sanctions. For the reasons set forth below, the Motion is **granted**.

In December 2025, Plaintiff Maria Seredkina served a subpoena on Google, LLC Corporation Service Company for documents relating to third-party Victoria Maschmeier. Ms. Maschmeier became aware of this subpoena because she received a notice from Google on December 18, 2025 notifying her of the subpoena and the obligation to file a Motion to Quash (and provide notice of it to Google) by January 8, 2026. Her counsel reached out to counsel for Seredkina and requested that the subpoena be withdrawn. That was not done prior to January 8, 2026, and Maschmeier filed the instant motion, and it was scheduled for hearing May 28, 2026. Ms. Maschmeier argues that she was never provided notice of the subpoena, and has still never received copies.

On May 15, 2026, Plaintiff filed an opposition to this motion noting that on May 12, counsel had

notified counsel for Ms. Maschmeier that Plaintiff with withdrawing the subpoena. On May 15, he notified Google of this withdrawal. Plaintiff now argues that the Motion is moot and no sanctions should issue. Plaintiff never argues that the subpoenas were proper or that the required notice was given or consent received. 18 U.S.C. § 2702 (requiring consumer consent prior to disclosure); Code Civ. Pro. § 1985.3 (requiring notice to consumer prior to service of subpoena for personal records).

Ms. Maschmeier responds with citation to *Roe v. Halbig*, 29 Cal.App.5th 286, 305 (2018). Unfortunately, *Roe* construes Code of Civil Procedure section 1987.2(c), which is not at issue here. The parallels with anti-SLAPP law to determine whether a withdrawn subpoena relating to free speech are simply not present here, where there has been no such showing. The Court will instead simply read the words of section 1987.2(a), which notes that reasonable attorney's fees can be awarded if "one or more of the requirements of the subpoena was oppressive." In this case, where the subpoena was clearly improper—both substantively and procedurally—and Plaintiff declined to make any move to withdraw it until the day the opposition was due, sanctions are appropriate. Counsel for Ms. Maschmeier's request for approximately ten hours of work in preparing and filing this Motion is appropriate, as it would not have been necessary absent Plaintiff's service of and failure to timely withdraw a subpoena, which she cannot defend. Sanctions against Plaintiff and her counsel are awarded in the amount of \$4,370.00, payable to Counsel Patton Sullivan Brodehl LLP within 30 days of this Order.

11. 9:00 AM CASE NUMBER: C24-03254
CASE NAME: MAJERRIS WALKER VS. CITY OF PITTSBURG
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: CITY OF PITTSBURG
TENTATIVE RULING:

The City's demurrer is **sustained with leave to amend**, as discussed below. Any amended complaint shall be filed and served on or before June 8, 2026. Should plaintiff elect not to amend, the time to answer will run from that date.

I. Factual Background

This matter involves allegations of police brutality. Plaintiff, Majerris Walker, alleges that when he called the police for help, they arrived and treated him as if he were a threat. Without provocation or cause, they illegally searched his car and asked him the location of "the gun." When plaintiff asked why the officers were searching his car without probable cause, the police told him he was being detained. One officer pushed plaintiff and when plaintiff questioned why he was being grabbed, all officers tackled plaintiff and used unnecessary violence. One police officer unnecessarily had his car towed.

Plaintiff was arrested and in the police car, the officers asked inappropriate questions in an attempt to create a pretext for the search. Plaintiff was jailed for three days and charged with two misdemeanors. Approximately one year after the incident, plaintiff was granted "arrest relief" under Penal Code 851.93 (charges dismissed or no conviction and record cleared). Still, plaintiff had to pay fees to get his car back, lost his job as the result of the arrest, and was unable to qualify for unemployment because the termination was considered "for cause." Plaintiff had to take out loans,